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SUPREME COURT OF FLORIDA

BRADLEY EUGENE KING

Petitioner (s)

SC 2026-1220
Lower Tribunal No (s).:
CASE NO.: 3D 2026-0602
2025-CA-1193-P

v.

MONROE COUNTY STATE ATTORNEY'S OFFICE ET AL.,

Respondent (s)
_____/

RESPONDENT MONROE COUNTY SHERIFF'S OFFICE'S MOTION TO DISMISS FOR LACK OF JURISDICTION

Respondent, Monroe County Sheriff's Office ("MCSO"), by and through undersigned counsel and pursuant to Florida Rules of Appellate Procedure, file this Motion to Dismiss Appeal as Taken from Non-final and Non-appealable Order, and in support thereof states as follows:

I. The Proceedings Against MCSO Arose From a Non-Final Order

Petitioner's claims against MCSO were challenged through a motion to dismiss filed in the trial court. MCSO argued that the Complaint failed to state a cause of action, was barred by statutory immunity, failed to satisfy applicable pre-suit requirements, and improperly named an entity that is not subject to suit. Petitioner failed to file a response.

Following a hearing conducted on February 20, 2026, the circuit court entered its Order on February 25, 2026. The trial court determined that Plaintiff “fails to state a proper cause of action” and granted MCSO's Motion to Dismiss. However, the court expressly dismissed the claims without prejudice and granted Plaintiff "one final opportunity to amend" his pleading by asserting a limited 42 U.S.C. §1983 claim against MCSO. The court afforded Plaintiff twenty (20) days to amend.

An order granting a motion to dismiss without prejudice is not an appealable final or non-final order. Welch v. Resolution Trust Corp., 590 So. 2d 1098, 1099 (Fla. 5th DCA 1991); EIR, Inc. v. Electronic Molding Corp., 540 So.2d 260 (Fla. 5th DCA 1989); see also Liebman v. Miami-Dade Cnty. Code Compliance Off., 54 So. 3d 1043, 1045 (Fla. 3d DCA 2011). Further, the granting of a motion to dismiss without prejudice is not one of the specifically enumerated nonfinal orders of which the Florida Rules of Appellate Procedure empower a district court to review. See FRAP 9.130(a)(3).

In response to Plaintiff’s appeal of that Order to the Third District Court of Appeals, MCSO filed a Motion to Dismiss Appeal as Taken from a Non-Final and Non-Appealable Order. MCSO argued that the February 25, 2026

order was neither final nor otherwise reviewable under Rule 9.130. Petitioner never filed a response opposing MCSO's motion.

On July 17, 2026, the Third District granted MCSO's motion and dismissed the appeal as to MCSO, expressly ruling: "Appellee Monroe County Sheriff's Office's Motion to Dismiss Appeal as Taken from a Non-Final and Non-Appealable Order is hereby granted as to Appellee Monroe County Sheriff's Office." The Third District further ordered that the appeal would proceed only with respect to other defendants whose dismissals had been entered with prejudice. Thus, the Third District never exercised jurisdiction over the merits of any claim involving MCSO. Rather, it determined that appellate jurisdiction did not exist because the underlying order was non-final and non-appealable.

II. This Court Likewise Lacks Jurisdiction

Petitioner now seeks discretionary review of the Third District's July 17, 2026 order. However, the only issue concerning MCSO decided by the Third District was whether the February 25, 2026 order was appealable. The Third District answered that question in the negative. Petitioner cannot create Florida Supreme Court jurisdiction by seeking further review of an order that was never appealable in the first place. The underlying order remains what it always was: a dismissal without prejudice accompanied by leave to amend.

If the circuit court order was non-final and outside the Third District's appellate jurisdiction, Petitioner cannot manufacture Supreme Court jurisdiction by repackaging the same issue as discretionary review.

Simply stated, the trial court entered a non-final dismissal order. The Third District correctly determined that the order was not appealable and dismissed MCSO from the appeal. Petitioner now seeks review of that same jurisdictional determination. No constitutional provision or appellate rule permits discretionary review of a non-final order that was never reviewable in the district court. Accordingly, this Court lacks jurisdiction as to MCSO.

III. Petitioner Has Failed to Establish Any Independent Basis for Discretionary Jurisdiction

Petitioner invokes Rule 9.030(a)(2)(A)(iii) and (iv), claiming that the Third District's decision affects a class of constitutional officers and conflicts with a decision of the Fourth District Court of Appeal. Neither assertion is sufficient. The July 17, 2026 order does not expressly affect a class of constitutional officers. It merely granted a motion to dismiss an appeal from a non-final order involving a single litigant and a single defendant.

Petitioner principally relies upon Fisher v. Professional Advertising Directors Co., Inc., 955 So. 2d 78 (Fla. 4th DCA 2007), a case involving the propriety of striking pleadings as a litigation sanction. Petitioner appears to

contend that the Third District's July 17, 2026 Order, which struck their Initial Brief and Appendix with leave to amend, creates an express and direct conflict with Fisher, thereby invoking this Court's discretionary jurisdiction. That argument fails. The Third District's order did not strike pleadings as a sanction. Rather, it struck Appellant's Initial Brief with leave to amend and directed that any amended briefing be limited to those defendants whose dismissals were entered with prejudice. Nothing within the four corners of the Third District's order expressly and directly conflicts with Fisher or any other district court decision. Accordingly, the legal issue addressed by the Fourth District case cited by Petitioner is entirely different from the jurisdictional determination made by the Third District in this case, and no express and direct conflict exists.

Moreover, Fisher arose from a trial court's decision to strike a defendant's answer as a discovery sanction pursuant to Florida Rule of Civil Procedure 1.380 after alleged discovery misconduct. The Fourth District addressed whether the drastic sanction of striking pleadings was warranted under the circumstances and ultimately concluded that the sanction was too severe. The case therefore concerned discovery violations, sanctions, prejudice, and the standards governing the trial court's exercise of sanction authority.

By contrast, the Third District's July 17, 2026 Order did not involve discovery misconduct, sanctions, Rule 1.380, or the striking of a pleading. Instead, the court dismissed MCSO from the appeal because the underlying February 25, 2026 order was non-final and non-appealable, and struck Petitioner's Initial Brief only because it improperly sought review of matters outside the scope of the appeal, while simultaneously granting leave to amend and refile. Put simply, Fisher concerns a trial court's sanctioning authority in the discovery context, whereas the Third District's order concerns appellate jurisdiction and appellate case management. The two decisions address entirely different legal issues, rendering any assertion of an "express and direct conflict" untenable.

Petitioner also attempts to invoke this Court's discretionary jurisdiction under Florida Rule of Appellate Procedure 9.030(a)(2)(A)(iii), contending that the Third District's July 17, 2026 Order "expressly affects a class of constitutional or state officers" because the underlying litigation involves the Monroe County State Attorney's Office, the Monroe County Sheriff's Office, and a private attorney. However, this assertion misunderstands and misapplies the limited scope of Rule 9.030(a)(2)(A)(iii).

As an initial matter, this Court has previously held that its discretionary jurisdiction under Article V, including the "class of constitutional or state

officers" provision invoked by Petitioner, must be construed narrowly. Travelers Ins. Co. v. Bruns, 443 So. 2d 959, 961 (Fla. 1984). ("The theory underlying the more restrictive rule is that appellate review of nonfinal judgments serves to waste court resources and needlessly delays final judgment"). To invoke that jurisdiction, the district court's written decision must itself expressly affect a recognized class of constitutional or state officers. The term "expressly" means that the effect must appear within the four corners of the district court's written decision. Mere implications or incidental effects are insufficient. Further, a "class" means two or more constitutional or state officers who separately and independently exercise identical governmental powers. Johnson v. State, 78 So. 3d 1305, 1308 (Fla. 2012) ("Because the district court based its decision on statutory interpretation, the decision is applicable to all RCC offices around the state, thus affecting the entire class of state officers"). The purpose of the provision is to permit review of decisions that directly affect one officer and, by doing so, similarly affect all officers in the same category. Florida State Bd. of Health v. Lewis, 149 So. 2d 41 (Fla. 1963).

The Third District's July 17, 2026 order does not satisfy those requirements. The order merely granted MCSO's motion to dismiss an appeal taken from a non-final, non-appealable order and directed that the

appeal proceed only as to certain defendants whose dismissals were entered with prejudice. It announced no rule governing sheriffs, state attorneys, assistant state attorneys, or any other class of constitutional officers. It did not address the duties, powers, validity, formation, termination, or regulation of any constitutional office. Rather, it resolved only a case-specific jurisdictional issue concerning the appealability of a particular trial court order. Indeed, this Court has previously explained that jurisdiction does not exist where there is "nothing in the district court decision" affecting other members of the alleged class as constitutional officers. School Bd. of Pinellas County v. District Court of Appeal, 467 So. 2d 985 (Fla. 1985). That is precisely the situation here.

Moreover, Petitioner's own jurisdictional allegation demonstrates the absence of a qualifying class. The Petition identifies as the purported "class" the Monroe County State Attorney's Office, the Monroe County Sheriff's Office, and a private attorney. Those entities do not constitute a class of constitutional or state officers exercising identical governmental powers. Nor does the Third District's order purport to affect all sheriffs, all state attorneys, or any other recognized statewide class. Accordingly, Rule 9.030(a)(2)(A)(iii) likewise does not provide a basis for this Court's jurisdiction.

Based on the foregoing, the appeal should be dismissed.

WHEREFORE, because the underlying order as to Respondent MCSO was non-final and non-appealable, because the Third District properly dismissed MCSO from the appeal on that basis, and because Petitioner has failed to establish any independent basis for this Court's discretionary jurisdiction, Respondent Monroe County Sheriff's Office respectfully requests that this Court dismiss these proceedings and grant such further relief as it deems just and proper.

I HEREBY CERTIFY that I have electronically filed a copy of the foregoing with the Clerk of the Court by using the Florida Courts E-Filing Portal to David G. Hutchison, Esq., (E-mail: Info@floridakeyslegal.com), P.O. Box 1262, Key Largo, FL 33037; Walter Dale Miller, Esq., (E-mail: Walter.Miller@myfloridalegal.com) Office of the Attorney General, 110 SW 6th Street, 10th Floor, Fort Lauderdale, FL 33301 and a copy will be forwarded to Pro Se Plaintiff, BRADLEY KING, (E-mail: MyJehovah777@mail.com), this September 25, 2026.

s/Andrew W. Jolly
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